

determine whether it is legal or equitable in nature. See, e. g., *Curtis v. Loether*, *supra*, at 196; *Ross v. Bernhard*, 396 U. S. 531, 542 (1970).⁴

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Petitioner analogizes this Government suit under § 1319(d) to an action in debt within the jurisdiction of English courts of law. Prior to the enactment of the Seventh Amendment, English courts had held that a civil penalty suit was a particular species of an action in debt that was within the jurisdiction of the courts of law. See, e. g., *Atcheson v. Everitt*, 1 Cowper 382, 98 Eng. Rep. 1142 (K. B. 1776) (characterizing civil penalty suit as a type of action in debt); *Calcraft v. Gibbs*, 5 T. R. 19, 101 Eng. Rep. 11 (K. B. 1792) (granting new jury trial in an action in debt for a civil penalty).

After the adoption of the Seventh Amendment, federal courts followed this English common law in treating the civil penalty suit as a particular type of an action in debt, requiring a jury trial. See, e. g., *United States v. Mundell*, 27 F. Cas. 23 (No. 15,834) (CC Va. 1795) (bail not required in a civil penalty case tried by a jury because it was an action in debt); *Jacob v. United States*, 13 F. Cas. 267 (No. 7,157) (CC Va. 1821) (action in debt by United States to recover civil penalty of \$500 and costs of violation of an Act of Congress); *Lees v. United States*, 150 U. S. 476, 479 (1893) ("[A]lthough the recovery of a penalty is a proceeding criminal in nature, yet in this class of cases it may be enforced in a civil action, and in the same manner that debts are recovered in the ordinary civil courts"). Actions by the Government to recover civil

⁴The Court has also considered the practical limitations of a jury trial and its functional compatibility with proceedings outside of traditional courts of law in holding that the Seventh Amendment is not applicable to administrative proceedings. See, e. g., *Atlas Roofing Co. v. Occupational Safety and Health Review Comm'n*, 430 U. S. 442, 454 (1977); *Pernell v. Southall Realty*, *supra*, at 383. But the Court has not used these considerations as an independent basis for extending the right to a jury trial under the Seventh Amendment.